

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

POLICY COMMITTEE
RECOMMENDATION

FOR ENGROSSED
SENATE BILL NO. 65

By: Weaver of the Senate

and

Turner of the House

POLICY COMMITTEE RECOMMENDATION

An Act relating to substance abuse services; defining terms; authorizing the possession, acquisition, distribution, and administration of emergency opioid antagonists and adulterant test strips by any person; providing criminal and civil immunities; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-403 of Title 43A, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Adulterant test strips" means test strips, papers, or other testing devices designed to detect the presence of fentanyl, xylazine, or other substances used to adulterate a controlled substance;

1 2. "Emergency opioid antagonist" means a drug including, but
2 not limited to, naloxone that blocks the effects of opioids and that
3 is approved by the United States Food and Drug Administration for
4 the treatment of an opioid overdose; and

5 3. "Person" means, unless the context otherwise requires, any
6 individual, partnership, association, corporation, limited liability
7 company, governmental entity, tribal entity, public or private
8 institution of postsecondary education, or other legal entity.

9 B. Notwithstanding any provision of law to the contrary, any
10 person may:

11 1. Possess and store emergency opioid antagonists or adulterant
12 test strips;

13 2. Acquire emergency opioid antagonists and adulterant test
14 strips by purchase or donation;

15 3. Distribute or make emergency opioid antagonists and
16 adulterant test strips available to any person to the extent
17 permitted under applicable federal law; and

18 4. Administer an emergency opioid antagonist to any person who
19 the person believes, in good faith, is experiencing an opioid
20 overdose.

21 C. A person shall not be subject to criminal prosecution for
22 possessing, storing, acquiring, distributing, making available, or
23 administering emergency opioid antagonists or adulterant test strips
24 pursuant to this section.

1 D. Any person who, in good faith, distributes, makes available,
2 or administers emergency opioid antagonists or adulterant test
3 strips pursuant to this section shall not be liable for any civil
4 damages as a result of any acts or omissions by such person, except
5 for acts or omissions constituting gross negligence or willful or
6 wanton wrongs in distributing, making available, or administering
7 emergency opioid antagonists or adulterant test strips.

8 SECTION 2. This act shall become effective July 1, 2026.

9 SECTION 3. It being immediately necessary for the preservation
10 of the public peace, health or safety, an emergency is hereby
11 declared to exist, by reason whereof this act shall take effect and
12 be in full force from and after its passage and approval.

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